

Raj Narayan Mishra v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 18 April 2018 · WRIT - C No. 13920 of 2018 · **Writ consigned to records; petitioner left to ss. 126/127/152 and Clauses 6.5/7.10; recovery to abide by the authority approached.**

HEADNOTE

A consumer challenging electricity recovery as excessive billing, after a theft case and a dishonoured compounding cheque of Rs 1 lakh, was refused writ interference. Theft is compoundable under Section 152 of the Electricity Act, 2003; assessment lies to the Executive Engineer under Section 126 with appeal under Section 127; the CGRF is available under Clause 7.10 of the U.P. Electricity Supply Code, 2005; a pure billing dispute may be raised under Clause 6.5; and if only a provisional assessment exists, a final assessment can still be made. The petitioner may avail any such remedy in accordance with law. Recovery shall abide by any order of the authority approached. The writ was consigned to records.

FACTUAL SUMMARY

Raj Narayan Mishra invoked Article 226 before the Allahabad High Court challenging electricity recovery on the ground of excessive billing when his consumption was far less. The record showed that a theft case had been registered against him. To get it compounded he tendered a cheque of Rs 1 lakh, which bounced, after which further recovery proceedings were undertaken. He then approached the High Court against the billing discrepancy and the amount alleged to be recovered.

HOLDING-UNITS

INTERPLAY · EA2003::126

writ-relegation-billing-theft-assessment-remedies

HOLDING

A writ petition raising a factual billing and recovery dispute after a theft case and a dishonoured compounding cheque will not be entertained when a variety of remedies remain available: compounding of theft under Section 152; assessment by the Executive Engineer under Section 126 with appeal under Section 127; the Consumer Grievance Redressal Forum under Clause 7.10 of the U.P. Electricity Supply Code, 2005; a final assessment if only a provisional assessment has been made; and a pure billing dispute before the Executive Engineer under Clause 6.5. The consumer may avail any such remedy in accordance with law. If the authority approached passes an order, recovery proceedings shall abide by it. ¶ 1

FLAG The Court referred to compounding as under 'Section 152 of the U.P. Electricity Act, 2003'; the provision applied is Section 152 of the Electricity Act, 2003 (EA2003::152). It also described the Section 127 appellate authority as a 'higher Forum'.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE ALLEGED EXCESSIVE BILLING, WHETHER THE DEMAND WAS A THEFT-COMPOUNDING RESIDUE, A SECTION 126 ASSESSMENT OR A PURE BILLING DISPUTE, AND THE QUANTUM OF RECOVERY

The Court declined to entertain the factual dispute and left the petitioner to statutory and Supply Code remedies without classifying the demand. ¶ 1